

1 ENGROSSED SENATE
2 BILL NO. 2135

By: Reinhardt of the Senate

3 and

4 Strom of the House

5
6 An Act relating to counties; amending 19 O.S. 2021,
7 Section 1505, as last amended by Section 2, Chapter
8 85, O.S.L. 2025 (19 O.S. Supp. 2025, Section 1505),
9 which relates to purchasing procedures for counties;
10 authorizing counties to obtain and utilize county
purchase cards through depositories; providing
transaction parameters; providing internal controls
and publication requirements; and declaring an
emergency.

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13 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

14 SECTION 1. AMENDATORY 19 O.S. 2021, Section 1505, as
15 last amended by Section 2, Chapter 85, O.S.L. 2025 (19 O.S. Supp.
16 2025, Section 1505), is amended to read as follows:

17 Section 1505. The following procedures shall be used by
18 counties for the requisition, purchase, lease-purchase, rental, and
19 receipt of supplies, materials, road and bridge construction
20 services, equipment, and other services, except for professional
21 services as defined in Section 803 of Title 18 of the Oklahoma
22 Statutes, for the maintenance, operation, and capital expenditures
23 of county government unless otherwise provided for by law.
24

1 A. The procedure for requisitioning items for county offices
2 shall be as follows:

3 1. The requesting department shall prepare a requisition form
4 in triplicate. The requisition shall contain any specifications for
5 an item as deemed necessary by the requesting department. The form
6 shall be prescribed by the State Auditor and Inspector;

7 2. The requesting department shall retain a copy of the
8 requisition and forward the original requisition and a copy to the
9 county purchasing agent; and

10 3. Upon receipt of the requisition, the county purchasing
11 agent, within two (2) working days, shall begin the bidding and
12 purchasing process as provided for in this section. Nothing in this
13 section shall prohibit the transfer of supplies, materials, or
14 equipment between county departments upon a written agreement
15 between county officers.

16 B. The bid procedure for selecting a vendor for the purchase,
17 lease-purchase, or rental of supplies, materials, equipment, and
18 services used by a county shall be as follows:

19 1. The county purchasing agent shall request written
20 recommendations from all county officers pertaining to needed or
21 commonly used supplies, materials, road and bridge construction
22 services, equipment, and services. From such recommendations and
23 available requisition, purchase, or inventory records, the county
24 purchasing agent shall prepare a list of items needed or commonly

1 used by county officers. The county purchasing agent shall request
2 from the Purchasing Division or from the Information Services
3 Division in the case of information technology and telecommunication
4 goods and services of the Office of Management and Enterprise
5 Services all contracts quoting the price the state is paying for the
6 items. The county purchasing agent shall either request the
7 Purchasing Division or the Information Services Division of the
8 Office of Management and Enterprise Services, as applicable, to make
9 the purchase for the county or the county purchasing agent shall
10 solicit bids for unit prices on the items for periods of not to
11 exceed twelve (12) months in the manner described in paragraph 2 of
12 this subsection. If the county purchasing agent receives a
13 requisition for an item for which the county purchasing agent does
14 not have a current bid, the county purchasing agent shall request
15 from the Purchasing Division or the Information Services Division of
16 the Office of Management and Enterprise Services, as applicable, all
17 contracts quoting the price the state is paying for the item. The
18 county purchasing agent shall either request the Purchasing Division
19 or the Information Services Division of the Office of Management and
20 Enterprise Services, as applicable, to make the purchase for the
21 county or the county purchasing agent shall solicit bids in the
22 manner described in paragraph 2 of this subsection. Nothing in this
23 paragraph shall prohibit bids from being taken on an item currently
24 on a twelve-month bid list, at any time deemed necessary by the

1 county purchasing agent. Whenever the county purchasing agent deems
2 it necessary to take a bid on an item currently on a twelve-month
3 bid list, the reason for the bid shall be entered into the minutes
4 of the board of county commissioners;

5 2. Bids shall be solicited by mailing or emailing a notice to
6 all persons or firms who have made a written request of the county
7 purchasing agent that they be notified of such bid solicitation and
8 to all other persons or firms who might reasonably be expected to
9 submit bids. Notice of solicitation of bids shall also be published
10 one time in a newspaper of general circulation in the county.

11 Notices shall be mailed and published at least ten (10) days prior
12 to the date on which the bids are opened. Proof of the mailing or
13 emailing shall be made by the affidavit of the person mailing or
14 emailing the request for bids and shall be made a part of the
15 official records of the county purchasing agent. The notice shall
16 specify whether the county will consider written bids, electronic
17 bids, or both; the decision to exclusively consider either written
18 bids or electronic bids shall be determined pursuant to an
19 affirmative vote of the board of county commissioners. Whenever any
20 prospective supplier or vendor dealing in or listing for sale any
21 particular item or article required to be purchased or acquired by
22 sealed bids fails to enter or offer a sealed bid for three
23 successive bid solicitations, the name of the supplier or vendor may
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1 be dropped from the mailing lists of the board of county
2 commissioners;

3 3. The sealed bids received from vendors and the state contract
4 price received from the applicable division of the Office of
5 Management and Enterprise Services shall be given to the county
6 clerk by the county purchasing agent. The county clerk shall
7 forward the sealed bids and state contract price, if any, to the
8 board of county commissioners;

9 4. The board of county commissioners, in an open meeting, shall
10 open the sealed bids and compare them to the state contract price.
11 The board of county commissioners shall select the lowest and best
12 bid based upon, if applicable, the availability of material and
13 transportation cost to the job site within thirty (30) days of the
14 meeting. For any special item not included on the list of needed or
15 commonly used items, the requisitioning official shall review the
16 bids and submit a written recommendation to the board before final
17 approval. The board of county commissioners shall keep a written
18 record of the meeting as required by law, and any time the lowest
19 bid was not considered to be the lowest and best bid, the reason for
20 such conclusion shall be recorded. Whenever the board of county
21 commissioners rejects the written recommendation of the
22 requisitioning official pertaining to a special item, the reasons
23 for the rejection shall be entered in their minutes and stated in a
24 letter to the requisitioning official and county purchasing agent;

1 5. The county purchasing agent shall notify the successful
2 bidders and shall maintain a copy of the notification. The county
3 purchasing agent shall prepare and maintain a vendors list
4 specifying the successful bidders and shall notify each county
5 officer of the list. The county purchasing agent may remove any
6 vendor from such list who refuses to provide goods or services as
7 provided by contract if the removal is authorized by the board of
8 county commissioners. The county purchasing agent may make
9 purchases from the remaining bidders for a price at or below the bid
10 price; and

11 6. When bids have been solicited as provided for by law and no
12 bids have been received, the procedure shall be as follows:

13 a. the county purchasing agent shall determine if
14 potential vendors are willing to commit to a firm
15 price for a reduced period of time, and, if such is
16 the case, the bid procedure described in this
17 subsection shall be followed,

18 b. if vendors are not willing to commit to a firm price
19 for a reduced period, the purchasing agent shall
20 solicit and record at least three quotes of current
21 prices available to the county and authorize the
22 purchase of goods or services based on the lowest and
23 best quote as it becomes necessary to acquire such
24 goods or services. The quotes shall be recorded on a

1 form prescribed by the State Auditor and Inspector and
2 shall be attached to the purchase order and filed with
3 the county clerk's copy of the purchase order. Any
4 time the lowest quote was not considered to be the
5 lowest and best quote, the reason for this conclusion
6 shall be recorded by the county purchasing agent and
7 transmitted to the county clerk, or

8 c. if three quotes are not available, a memorandum to the
9 county clerk from the county purchasing agent shall
10 describe the basis upon which a purchase is
11 authorized. The memorandum shall state the reasons
12 why the price for such a purchase is the lowest and
13 best under the circumstances. The county clerk shall
14 then attach the memorandum to the county clerk's copy
15 of the purchase order and file both in the office of
16 the county clerk.

17 C. After selection of a vendor, the procedure for the purchase,
18 lease-purchase, or rental of supplies, materials, road and bridge
19 construction services, equipment, and services used by a county
20 shall be as follows:

21 1. The county purchasing agent shall prepare a purchase order
22 in quadruplicate and submit it with a copy of the requisition to the
23 county clerk;
24

1 and submit the other copy to the receiving officer of the requesting
2 department.

3 D. 1. The procedure for the purchase of supplies, materials,
4 equipment, and services at public auction or by sealed bid to be
5 used by a county shall be as follows:

6 a. the county purchasing agent shall prepare a purchase
7 order in quadruplicate and submit it with a copy of
8 the requisition to the county clerk,

9 b. the county clerk shall then encumber the amount stated
10 on the purchase order and assign a sequential number
11 to the purchase order,

12 c. if there is an unencumbered balance in the
13 appropriation made for that purpose by the county
14 excise board, the county clerk shall so certify in the
15 following form:

16 "I hereby certify that the amount of this encumbrance
17 has been entered against the designated appropriation
18 accounts and that this encumbrance is within the
19 authorized available balance of the appropriation.

20 Dated this _____ day of _____, 20__.

21 _____

22 County Clerk/Deputy

23 of _____ County".

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1 In instances where it is impossible to ascertain the
2 exact amount of the indebtedness sought to be incurred
3 at the time of recording the encumbrance, an estimated
4 amount may be used. No purchase order shall be valid
5 unless signed by the county purchasing agent and
6 certified by the county clerk, and

7 d. the county clerk shall file the original purchase
8 order and return three copies to the county purchasing
9 agent who shall file a copy, retain a copy for the
10 county road and bridge inventory officer if the
11 purchase order is for the purchase of equipment,
12 supplies, or materials for the construction or
13 maintenance of roads and bridges, and submit the other
14 copy to the receiving officer of the requesting
15 department.

16 2. The procedure for the purchase of supplies, materials, and
17 equipment at a public auction when the purchase will be made with
18 the proceeds from the sale of county property at the same public
19 auction is as follows:

20 a. the purchasing agent shall cause such items being sold
21 to be appraised in the manner determined in Section
22 421.1 of this title,
23
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- 1 b. the county purchasing agent shall prepare a purchase
2 order in quadruplicate and submit it with a copy of
3 the requisition to the county clerk,
- 4 c. the county clerk shall then encumber the amount of the
5 appraised value and any additional funds obligated by
6 the county on the purchase order and assign a
7 sequential number to the purchase order,
- 8 d. the county clerk shall certify that the amount of the
9 encumbrance is equal to the appraised value of the
10 item being sold plus any additional funds obligated by
11 the county. In effect, the recording of the
12 encumbrance is an estimate that is authorized by law.
13 No purchase order shall be valid unless signed by the
14 county purchasing agent and certified by the county
15 clerk,
- 16 e. the county clerk shall file the original purchase
17 order and return three copies to the county purchasing
18 agent who shall file a copy, retain a copy for the
19 county road and bridge inventory officer if the
20 purchase order is for the purchase of equipment,
21 supplies, or materials for the construction or
22 maintenance of roads and bridges, and submit the other
23 copy to the receiving officer of the requesting
24 department, and

1 f. a purchase shall not be bid until such time that the
2 appraised item or items are sold. Any item or items
3 purchased shall not exceed the appraised value plus
4 any additional funds obligated by the county or the
5 actual selling price of the item or items, whichever
6 is the lesser amount.

7 E. The procedure for the receipt of items shall be as follows:

8 1. A receiving officer for the requesting department shall be
9 responsible for receiving all items delivered to that department;

10 2. Upon the delivery of an item, the receiving officer shall
11 determine if a purchase order exists for the item being delivered;

12 3. If no such purchase order has been provided, the receiving
13 officer shall refuse delivery of the item;

14 4. If a purchase order is on file, the receiving officer shall
15 obtain a delivery ticket, bill of lading, or other delivery document
16 and compare it with the purchase order. If any item is back-
17 ordered, the back order and estimated date of delivery shall be
18 noted in the receiving report;

19 5. The receiving officer shall complete a receiving report in
20 quadruplicate which shall state the quantity and quality of goods
21 delivered. The receiving report form shall be prescribed by the
22 State Auditor and Inspector. The person delivering the goods shall
23 acknowledge the delivery by signature, noting the date and time;
24

1 6. The receiving officer shall file the original receiving
2 report and submit:

- 3 a. a copy of the purchase order and a copy of the
4 receiving report to the county purchasing agent, and
- 5 b. a copy of the receiving report with the delivery
6 documentation to the county clerk;

7 7. The county purchasing agent shall file a copy of the
8 purchase order and a copy of the receiving report;

9 8. Upon receipt of the original receiving report and the
10 delivery documentation, the county clerk shall maintain a file until
11 such time as an invoice is received from the vendor;

12 9. The invoice shall state the name and address of the vendor
13 and must be sufficiently itemized to clearly describe each item
14 purchased, the unit price when applicable, the number or volume of
15 each item purchased, the total price, the total purchase price, and
16 the date of the purchase;

17 10. Upon receipt of an invoice, the county clerk shall compare
18 the following documents:

- 19 a. requisition,
- 20 b. purchase order,
- 21 c. invoice with noncollusion affidavit as required by
22 law,
- 23 d. receiving report, and
- 24 e. delivery document.

1 The documents shall be available for public inspection during
2 regular business hours; and

3 11. If the documents conform as to the quantity and quality of
4 the items, the county clerk shall prepare a warrant for payment
5 according to procedures provided for by law.

6 F. The following procedures are for the processing of purchase
7 orders:

8 1. The purchasing agent shall be allowed up to three (3) days
9 to process purchase orders to be presented to the board of county
10 commissioners for consideration and payment. Nothing herein shall
11 prevent the purchasing agent from processing or the board of county
12 commissioners from consideration and payment of utilities, travel
13 claims, and payroll claims;

14 2. The board of county commissioners shall consider the
15 purchase orders so presented and act upon the purchase orders, by
16 allowing in full or in part or by holding for further information or
17 disallowing the same. The disposition of purchase orders shall be
18 indicated by the board of county commissioners, showing the amounts
19 allowed or disallowed, and shall be signed by at least two members
20 of the board of county commissioners. Any claim held over for
21 further information shall be acted upon by allowing or disallowing
22 same at any future meeting of the board held within seventy-five
23 (75) days from the date of filing of the purchase order. Any
24 purchase order not acted upon within the seventy-five (75) days from

1 the date of filing shall be deemed to have been disallowed, but such
2 disallowance shall not prevent the refiling of the purchase order at
3 the proper time; and

4 3. Whenever any allowance, either in whole or in part, is made
5 upon any purchase order presented to the board of county
6 commissioners and is accepted by the person making the claim, such
7 allowance shall be a full settlement of the entire purchase order
8 and provided that the cashing of warrant shall be considered as
9 acceptance by the claimant.

10 G. The procedure upon consumption or disposal of supplies,
11 materials, or equipment shall be as follows:

12 1. For consumable road or bridge items or materials, a
13 quarterly report of the road and bridge projects completed during
14 such period shall be prepared and kept on file by the consuming
15 department. The quarterly report may be prepared and kept
16 electronically by the consuming department. The report shall
17 contain a record of the date, the place, and the purpose for the use
18 of the road or bridge items or materials. For purposes of
19 identifying county bridges, the board of county commissioners shall
20 number each bridge subject to its jurisdiction; and

21 2. For disposal of all equipment and information technology and
22 telecommunication goods which originally cost more than Five Hundred
23 Dollars (\$500.00), resolution of disposal shall be submitted by the
24 officer on a form prescribed by the Office of the State Auditor and

1 Inspector to the board of county commissioners. The approval of the
2 resolution of disposal shall be entered into the minutes of the
3 board.

4 H. Inventory forms and reports shall be retained for not less
5 than two (2) years after all audit requirements for the state and
6 federal government have been fulfilled and after any pending
7 litigation involving the forms and reports has been resolved.

8 I. The procedures provided for in this section shall not apply
9 when a county officer certifies that an emergency exists requiring
10 an immediate expenditure of funds. Such an expenditure of funds
11 shall not exceed Five Thousand Dollars (\$5,000.00). The county
12 officer shall give the county purchasing agent a written explanation
13 of the emergency. The county purchasing agent shall attach the
14 written explanation to the purchase order. The purchases shall be
15 paid by attaching a properly itemized invoice, as described in this
16 section, to a purchase order which has been prepared by the county
17 purchasing agent and submitting them to the county clerk for filing,
18 encumbering, and consideration for payment by the board of county
19 commissioners.

20 J. The county purchasing agent may authorize county purchasing
21 officers to make acquisitions through the state purchase card
22 program as authorized by the State Purchasing Director in accordance
23 with Section 85.5 of Title 74 of the Oklahoma Statutes and defined
24 in Section 85.2 of Title 74 of the Oklahoma Statutes. A purchase

1 cardholder shall sign a purchase card agreement prior to becoming a
2 cardholder and attend purchase card procedure training as required
3 by the State Purchasing Director. Complete descriptions of
4 purchases made by county government entities shall be published as
5 warrants required to be published pursuant to Sections 444 and 445
6 of this title.

7 K. Nothing in this section shall prohibit counties from
8 providing material and/or services bids on the twelve-month bid list
9 to all road and bridge projects and contracts. All non-road and
10 bridge related construction contracts shall refer to subsection A of
11 Section 103 of Title 61 of the Oklahoma Statutes.

12 L. The county purchasing agent may authorize county purchasing
13 officers to obtain and utilize a county purchase card issued through
14 a county depository in compliance with Section 114 of this title,
15 and may authorize the use of such purchase cards for acquisitions
16 within the following parameters:

17 1. There shall be no limit on the amount of the transaction for
18 the following:

- 19 a. purchases made under countywide or multicounty
20 contracts, or under contracts awarded by the county
21 purchasing agent for the benefit of the county,
22 b. utilities,
23
24

- c. intergovernmental payments, including payments to other counties, municipalities, public trusts, school districts, or state agencies,
- d. emergency acquisitions, provided the requirements to establish an emergency pursuant to this section or other applicable law or county purchasing procedures have been met, or
- e. professional services as defined in Section 803 of Title 18 of the Oklahoma Statutes;

2. For any other transaction made with a county purchase card, the transaction shall not exceed the greater of Five Thousand Dollars (\$5,000.00) or the limit established by the county purchasing agent. Such limit shall not exceed the fair and reasonable acquisition threshold authorized under this section;

3. Purchase cardholders shall sign a purchase card agreement prior to becoming a cardholder. Complete descriptions of purchases made by county government entities shall be published as warrants required to be published pursuant to Section 445 of this title;

4. All acquisitions made pursuant to this subsection shall remain subject to the competitive bidding, emergency declaration, and purchase order procedures required by this section unless expressly exempted; and

5. The board of county commissioners may solicit sealed bids from qualified financial institutions to provide a county purchase

1 card program. The contract shall be awarded in a public meeting to
2 the institution whose proposal provides the greatest overall benefit
3 to the county pursuant to subsection B of this section.

4 SECTION 2. It being immediately necessary for the preservation
5 of the public peace, health or safety, an emergency is hereby
6 declared to exist, by reason whereof this act shall take effect and
7 be in full force from and after its passage and approval.

8 Passed the Senate the 26th day of March, 2026.

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10 _____
11 Presiding Officer of the Senate

12 Passed the House of Representatives the ____ day of _____,
13 2026.

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15 _____
16 Presiding Officer of the House
17 of Representatives
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